Critical Notice:

Freedom and Simulation Hypothesis

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1 Introduction

The folk theory of moral responsibility (henceforth FT-MR) says that "normally, morally responsible agents can do otherwise" (Whittle 2016, 82). Frankfurt-Style Cases remind us that given a monitoring supervisor, a morally responsible agent may have no alternative possibilities (i.e., cannot do otherwise). Intuitively, either FT-MR or Frankfurt-Style Cases are compelling. Yet they are inconsistent. Question: can a theory accommodate both ideas? Usually, the answer is no. Philosophers either reject FT-MR, abandoning the leeway model of control condition, or reject the idea that agents in Frankfurt-Style Cases are morally responsible. However, Whittle unexpectedly says. Her account combining FT-MR and Frankfurt-Style Cases says that "*ceteris paribus*, if subject S is morally responsible for an action A, then S could have done other than A (Whittle 2016, 74)," where the "ceteris paribus" clause should be construed as "normal(-ly)." And in ordinary language, 'normal' is usually taken to be statistical majority (or *majority-normality* in Whittle's formulation). It reads:

> One perfectly acceptable way of reading 'normally' here is to say that, statistically speaking, the number of agents who are morally responsible for their actions, and can do otherwise, are in the significant majority.
>
> (Whittle 2016, 81)

One problem Whittle faces is Global Frankfurt-Style Case (henceforth Global FSC). Global FSC depicts an image that one agent, in his entire life, lives under Frankfurt-wise supervision (Mele & Robb 1998, 110). Consider:

> Black decides he enjoys being in control of every aspect of Frank's life. So, Black leaves the device in, and programs his desired outcome for every decision that Frank will ever make. However, by an amazing series of coincidences, the device proves redundant on every occasion.
>
> (Based on Mele and Robb 1998, 110)

This setting extends to the scenario that everybody, in one world, is unknowingly living under Frankfurt-wise supervisions. Whittle acknowledges that the "majority-normal" sense of normality cannot deal with the objection from extended version of Global FSC, that everybody in a world is living under Frankfurt-wise supervisions. Because in this case, given majority normality, the correct generalization concerning moral responsibility and avoidability (i.e., the ability to do otherwise) should be "normally, morally responsible agents CANNOT do otherwise." In response to

Global FSC, Whittle introduces and emphasizes the "privilege-normal" sense of normality (Whittle 2016, 82). Privilege-normality says:

> We privilege a certain set of actual conditions, where the deliberative process is not necessitated by what precedes it, and take this to define the 'normal situation' across possible worlds.
>
> (Ibid.)

Given privileged-normality, in the absence of interfering factors like a Frankfurt-wise supervisor, the generalization that "morally responsible agents can do otherwise" is true. So far, so good.

In what follows, I argue that Whittle's reply to Global FSC is problematic by raising two challenges. In Section 2, I argue Whittle's Ceteris Paribus Account is probably a misuse of Ceteris Paribus Laws. And in Section 3, I argue Whittle privileging her *privileged actual conditions* is dubiously arbitrary. I eventually conclude with my cautious comment on the project accommodating FT-MR and Frankfurt-Style Cases.

2 First Challenge: Misuse

My first challenge is Whittle's Ceteris Paribus Account is probably a misuse of Ceteris Paribus Laws. To see this problem, we primarily need a rigorous formulation of Ceteris Paribus Laws

(henceforth CP Laws).

The distinction of Strict Laws and CP Laws comes from discussions concerning laws of nature. Strict laws are generalisation with no exceptions. E.g., given the truth of general relativity, "nothing can travel faster than light" is a Strict Law. CP Laws are generalisation that qualify as laws, despite the fact that they are non-universal. E.g., "ceteris paribus, penicillin cures syphilis" is a CP Law in virtue of exceptions like for syphilis patients who are allergic to antibiotics, penicillin cannot cure syphilis. And in philosophical debates, CP Laws are usually used to asserts that a certain state A leads to another state B, provided disturbing factors or influences are absent (Reutlinger, Schurz & Hüttemann 2021, sec. 3.1). Two other examples of exclusive CP Laws are in order (ibid.):

(1) Ceteris paribus, planets have elliptical orbits (*A case in Physics*).

(2) Ceteris paribus, people's actions are goal-oriented, in the sense that if person *x* wants A and believes B to be an optimal means for achieving A, then *x* will attempt to do B (*A case in Psychology*).

In (1), the "ceteris paribus" clause requires that other (non-negligible) forces on the planet except that of the sun are—not merely constant but—absent. Likewise, the "ceteris paribus" clause of (2) requires that any factors causing irrational behaviour be absent. And a paradigmatic formulation of Exclusive CP Laws goes as follows. Grant that CP Laws are formulated in the form "ceteris

paribus, if B then A"[1] (where A and B are two sets of facts), $C_1, \ldots, C_n$ be appropriate condition of the considered system and $Z_1, \ldots, Z_n$ be disturbing factors. We have:

> **Exclusive CP Laws**. If, given the presence of $C_1, \ldots, C_n$ and the absence of $Z_1, \ldots, Z_n$, if B then A, then "ceteris paribus, if B then A."

A tactic note: as for what I mean by 'disturbing,' a crude strategy is that to say *x* is a disturbing factor is to exclude it from $\{C_1, \ldots, C_n\}$. This exclusion makes sure "other things being *right*" (cf. Nancy Cartwright, 1983, *How the Laws of Physics Lie*, Oxford: Oxford University Press, p. 45). But a residual problem here is what counts as an appropriate condition. A tentative response is the holding-true of "if B then A" counterfactually depends on the obtaining of $\{C_1, \ldots, C_n\}$. I acknowledge there are some details remaining underexplained, yet I believe the general notion is clear. And to point out Whittle's misuse, a general picture would suffice.

Now before I make my accusation, let's recheck if Whittle intends, or claims, that she utilizes Exclusive CP Laws to formulate her account. She writes:

> If an agent is ever morally responsible for an act in such a world, it cannot be because she can majority-normally do otherwise, but rather because, *in the absence of disturbing factors* (or privileged-normally), she could have done otherwise.

[1] For the convenience of discussion, I take CP Laws to be "if … then …" generalizations of facts. Yet my readers are welcomed to come up with other formulations of Exclusive CP Laws. Since my purpose is to point out a structural flaw of Whittle's defense, I believe my preference of formulation would not reduce the strength of my challenge.

(Whittle 2016, 83, my emphasis)

Apparently, Whittle does utilize "ceteris paribus" clause in such exclusive sense. Thus, I will illustrate how she misuses Exclusive CP Laws in the following paragraph.

Let's return to Whittle's strategy appealing to *privileged actual conditions*. Those *privileged actual conditions*, as Whittle implicitly suggests, are conditions such that one agent's deliberative process is highly probably not interfered by a Frankfurt-wise supervisors (see Whittle 2016, 82). Given those conditions, Whittle in fact draws a distinction. This distinction is—for actual cases, morally responsible agents can do otherwise; while for Global FSC, morally responsible agents cannot do otherwise. Given this distinction, it follows that there are two clauses in our conception of moral responsibility. Let M be all facts about moral responsibility, Ma be facts about moral responsibility in actual cases, Mf be facts about moral responsibility in Global FSC, and Fs be Global Frankfurt factors (e.g., the presence of a monitoring supervisor). Whittle's conception of moral responsibility is—*M is either Ma or Mf*. Given this conception, Global Frankfurt factors—or Fs in notation—become constitutive to Mf and are therefore not disturbing factors but arguably appropriate conditions—or Rs in notation—of the considered system. Then, let P be facts about the ability to do otherwise, the overall image of Whittle's account can be illustrated as follows:

Whittle's CP Account. If, given the presence of Rs the absence of Fs, if M (either Ma or Mf) then P, then "ceteris paribus, if M then P."

Contrasting the paradigmatic formulation of Exclusive CP Laws, given our conclusion that Fs are included in Rs, Whittle's account above is illegitimate. However, does this mean Whittle fail? No. Whittle can assumably revise her proposal.

First, Whittle could exclude Global FSC from moral responsibility situations (i.e., exclude Mf from M). Then her account becomes: If, given the presence of Rs the absence of Fs, if M (i.e., Ma) then P, then "ceteris paribus, if M then P." It is now a proper Exclusive CP Law. However, the price of this option is to reject the notion that agents in Global FSC is morally responsible. And rejecting this notion is in fact (one way to) reject Frankfurt-Style Cases. But such rejection betrays Whittle's claim that "[my account] was motivated by its ability to combine two compelling considerations: PAP[2] and FSCs" (Whittle 2016, 83). I therefore doubt if this option is adaptable for Whittle.

Second, Whittle could argue that her Ceteris Paribus Account of moral responsibility is different from standard Exclusive CP-Laws. However, she writes:

> Ceteris paribus laws or (less contentiously) generalisations in the special sciences are often employed in explanations of some target phenomenon. These generalisations are not rejected, despite exceptions, nor are they regarded as irrelevant, or uninformative when characterising the phenomenon in question. … *In the same way*, we might argue,

[2] PAP is Whittle's naming for the claim (or principle, as she calls it) "an agent is morally responsible for what she has done only if she could have done otherwise." This claim, as I name it, is called the folk theory of moral responsibility (a.k.a. FT-MR).

> we can often explain why an agent is not morally responsible for an action by appealing to the fact that the agent was unable to perform any alternative action, even though we acknowledge that this is not the only factor relevant to assessing the agent's responsibility for the act.
>
> (Whittle 2016, 75, my emphasis)

It appears Whittle does intend to apply a standard Exclusive CP Law to moral responsibility. Hence, Whittle's Ceteris Paribus Account is probably a misuse of Ceteris Paribus Laws anyway. Nevertheless, as we proceed, I suggest we put this problem aside and see if there is any other problem for Whittle.

3 Second Challenge: Arbitrariness

My second challenge is Whittle privileging her *privileged actual conditions* is dubiously arbitrary. My argument is that, epistemically speaking, the best explanation for (fundamental) facts[3] about our world is that our world is highly probably a simulation[4] (I call this thesis *Simulation Hypothesis*, following David Chalmers 2022). And if a Global FSC is a simulation (as I argue it is), then it is more rational for us to believe that our world is highly probably a Global FSC.

[3] More precisely, natural facts. See my coming distinction.

[4] I understand some readers may wonder what, metaphysically speaking, our world actually is. A natural idea is our world (or physical reality, as granted) is more real. Thus, even though epistemically our world is highly probably a simulation (granted for the sake of argument), we still have metaphysical reason to believe our world is not a simulation—because simulation is intuitively not as real as physical world! For argument in support of this claim, see Chalmers 2022, Ch. 3.

First thing first, I clarify what I mean by 'best explanation.' Usually, though not non-controversially, two salient indexes (a.k.a. theoretical virtues) are considered when we judge whether a theory is good: simplicity and explanatory power (see Lipton 2004, 112-122 for details). I acknowledge how those criteria of 'best' are ordered is disputable. Fortunately, I am relieved to say it does not bother our discussion here. And I also distinguish two classes of facts: natural facts and moral facts. Natural facts are facts about physical reality, e.g., the starting time of Big Bang, the total mass of matter in the universe, the distance from the earth to the sun, etc. Moral facts are facts about moral practice, e.g., Jesus is praiseworthy for his deeds, Adolf Hitler is morally responsible for genocide of Jews, action of ignorance is (not) guilty, etc. Usually, though not non-controversially, we believe natural facts are more fundamental than moral facts (even some moral realists should concur). [By 'fundamental' I only employ the pre-theoretical sense, not necessarily connected to recent debates in Metaphilosophy.] And an audacious but arguably plausible claim is, for two theories T_1 and T_2, and two sets of facts S_1 and S_2 (given S_1 is more fundamental than S_2), if T_1 is the best explanation of S_1 while T_2 is the best explanation of S_2, all things considered, T_1 is still better than T_2. I understand the potential controversy, though I will not provide a complete defense of such claim (nor can I succeed doing so in a paper of such length). Yet correspondingly, I weaken my conclusion—instead of saying Whittle's argument is invalid, I only argue her reasoning is problematic. I believe my argument will then be more considerable.

Before I start, recall that Whittle's account of *privileged actual conditions* says *privileged actual conditions* are conditions in which "the 'normal situation' across possible worlds is defined"

(Whittle 2016, 82). That is to say, *privileged actual conditions* are such conditions that differentiate actual world from globally Frankfurtized world. In short, *privileged actual conditions* are NO-Frankfurt-wise conditions. I admit, Whittle's account of *privileged actual conditions* seems to be highly intuitive. Most people are inclined to believe in those conditions differentiating our world from Global FSC. But my question is—how is our belief that our world is not a Global FSC justified? If Whittle cannot plausibly answer this question, then her privileging those "privileged actual condition" is dubiously arbitrary, even if her doing so is in fact correct. And I can assume two rounds of rebuttals with Whittle on the issue concerning the justification of the believe "our world is not a Global FSC". Those rebuttals are in order.

3.1 Round One: Prima Facie Justification?

Defence. Whittle could argue that "our world is not a Global FSC" is a Moorean fact, and our believing in this fact needs no explanation (or more fashionably speaking, *prima facie* justified[5]). She can argue her stance is Moorean in the sense that "*my belief that our world is not a Global FSC since I perceive so; and this intuition is so strong that no philosophical arguments can ever shake it*."

Rejoinder. I must admit this position indeed captures the spirit of FT-MR. We do have the intuition that morally responsible agents can do otherwise. Granted the plausibility of the Moorean

[5] As Dogmatists like James Pryor defend it. See footnote no. 6.

stance that "I have a strong intuition that T, and no philosophical arguments can affect me believing in for a slightest bit" (where T is a folk claim)[6], two things about the Moorean stance that "our world is not a Global FSC" worth noticing. For one thing, the stance itself is dubiously arbitrary. Your peer reasonably invites you to a reasonable conversation, while you steadfastly claim that your position IS correct and needs NO further explanation. For another thing, it is not clear that our intuition that "our world is not a Global FSC" is strong enough to be a Moorean fact. I find it hard to say our intuition that "our world is not a Global FSC" is as strong as the intuition that "I am not a brain in a vat." [N.b. In order to not trivialize the debate, my readers should not take my second reason, a mere intuitive claim, too serious. In fact, my first rebuttal with Whittle is vastly grounded in intuition. And I recommend my readers to not get too devoted here. My second rebuttal with Whittle would be more significant.]

3.2 Round Two: Inference to Best Explanation?

Defence. Whittle could argue that "our world is not a Global FSC" is the best explanation of

[6] Though I grant so for the sake of argument, it's note-worthy that there are many philosophers against Mooreanism. Aside from its "bullying" arbitrariness I argue later, one important reason is circularity (cf. Alston, William. (1986). Epistemic Circularity. *Philosophy and Phenomenological Research*, 47). A Moorean stance about "our world is not a Global FSC", I assume, also faces the problem of circularity. Consider an argument in Moorean style:

(1) I act in accord to my deliberation.
(2) If one acts in accord to his own deliberation, then he is not live in a Global FSC.
(3) The world where I live is not a Global FSC. (1, 2)

Premise (1) seems to be true in virtue of the holding-true of premise (3).

Yet I do not take it as a fatal flaw to Moorean stances. Philosophers can vigorously defend Mooreanism (or, according to Pryor (2000), Dogmatism). Cf. Pryor, James. (2000). The Skeptic and the Dogmatist. *NOÛS* 34(4): 517-549; and Pryor, James. (2004). What's Wrong with Moore's Argument? *Philosophical Issues* 14(2): 349-378.

all the moral facts about our world. Suppose moral facts in our world include "I am late for class," "the shooter wounds three people," "Hitler causes genocide of Jews" … And we have two explanations:

> **NO-F Explanation**. Inhabitants in our world act in accordance to their non-Frankfurt-wise supervised deliberations.
>
> **F Explanation**. There is a Frankfurt-wise supervisor monitoring every inhabitant in our world. Only because we all act as what the supervisor wants, it appears that we act in accordance to our own deliberations.

Now given the Inference to Best Explanation (henceforth IBE), the best explanation for facts like "I am late for class," "the shooter wounds three people," "Hitler causes genocide of Jews," etc. is that "our world is not a Global FSC."

One may wonder—on what ground can you claim that NO-F Explanation is the best explanation of the given facts about our world? Whittle's reasoning is probably as follows. In the case of NO-F Explanation and F Explanation, two theories are equally competitive in explanatory power—both of them can explain ALL the facts in our world. Concerning explanatory power, there is a tie. Now, consider simplicity, it seems the scale leans to NO-F Explanation—because F Explanation has an extra monitoring mechanism, which increases complexity. Eventually, given considerations of simplicity and explanatory power, the best explanation for facts in our world at least leans to NO-F Explanation.

Rejoinder. Whittle's reasoning seems attractive. But NO-F explanation is not the best explanation for all the natural facts—i.e., fundamental facts—about our world. Suppose natural facts in our world include "Big Bang lasts for 10^{-43} seconds," "matters take up 31% of the totality of matters and energies," "the earth is 149,597,870,700 meters away from the sun," … And we have two explanations:

NO-S Explanation. There is no underlying mechanism beneath those natural facts. They are merely chancy.

S Explanation. The natural facts are in fact outcomes of an operating simulation.

Granted a common principle in normative epistemology that, *other thing being equal*, we should believe the proposition whose credence (or just objective probability in this case) is higher/the highest. Consider the probability of NO-S Explanation. To make thing easier, we grant all facts are mutually independent and we first consider just one fact that "Big Bang lasts for 10^{-43} seconds." According to NO-S Explanation, since this fact is merely chancy the case, the endurance of Big Bang could be …, $0.999 \cdot 10^{-43}$ seconds, 10^{-43} seconds, $1.001 \cdot 10^{-43}$ seconds, … In principle, the objective probability of this arbitrary fact is close to 0, let alone other natural facts and their conjunction. By contrast, if the simulation never goes wrong, the objective probability of S Explanation is nearly 1. Even if given the possibility that sometimes the simulation does not function well, the credence of S Explanation is still assumably (much) higher than nearly 0. We therefore should believe S Explanation. This point is the rationale for the convincing thesis that our world is highly

probably a simulation.

Before I move on to argue how *Simulation Hypothesis* could support the claim that "our world is probably a Global FSC," I will consider one concerns. It says, there are other considerations for 'best,' e.g., simplicity or explanatory power, and NO-S Explanation may do better. My response is as follows. Since both explanations accommodates all natural facts, it is a tie concerning explanatory power. And it remains unclear which is more elegant/simple. That is, it is disputable whether generating by randomness is simpler than generating by one simulation, or *vice versa*? Given such controversy, this concern does not substantially threat my rejoinder.

The last chain of my rejoinder is to illustrate the idea that our world is a simulation supports the idea that our world is a Global FSC. I believe this step is not difficult. The *Simulation Hypothesis* says that we're living in a (computer) simulation—that is, that we are and always have been receiving our inputs from and sending our outputs to an artificially-designed computer simulation of a world (Chalmers 2022, 29). This setting is not essentially distinct from Frankfurt-wise conditions—the supervising mechanism in Global FSC can somewhat be construed as an artificially-designed algorithm. Suppose in a Global FSC there is only one person (i.e., Frank), operating only one action (i.e., intending something), and consider the toy simulation program below:

```
BEGIN
    FROM Frank's intention i
    WHERE EITHER i = A OR i ≠ A;
```

```
        IF i ≠ A, THEN
        <i = input "A"></i>;
        END IF;
    END;
    /
```

The output of this program should be "Frankfurt (unforcedly) intentions A." In principle, for each action of each person, one similar program can be written. Thus, we can take Global FSC to be a simulation, composed of segments of programs like above. And given my previous conclusion that our world is highly probably a simulation, it is safe to say "our world is highly probably a Global FSC."

Anyway, Whittle privileging her *privileged actual conditions* is dubiously arbitrary. Though it does not follow that Whittle's privileging her *privileged actual conditions* is wrong, my argument at least illustrates that her doing so is unjustified.

4 Conclusion

To sum up, I reviewed Whittle's Ceteris Paribus Account accommodating FT-MR and Frankfurt-Style Cases and her response to Global FSC appealing to *privileged actual conditions* (Introduction). I first argued that Whittle's Ceteris Paribus Account is probably a misuse of Ceteris

Paribus Laws (Section 2). And I then argued that Whittle privileging her privileged actual conditions is dubiously arbitrary (Section 3). My conclusion is Whittle's reply to Global FSC is problematic. I agree that it does not follow that Whittle's project fails, nonetheless, my argument implies Whittle needs a revision. Back to the question at the beginning—can a theory accommodate both FT-MR and Frankfurt-Style Cases? Maybe, but such accommodation is unlikely to be done by posing Whittle's account (2016) at present.

References

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